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COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Mandate-Stay Motion: Denial Path

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Filed July 27, 2026

Granite Heron moves under Federal Rule of Appellate Procedure 41(d)(2) to stay the mandate associated with the counterfactual judgment entered July 9, 2026. That judgment affirmed the mitigation JMOL and the \$2,700,000 amended district judgment. The conditional Rule 59 ruling remained dormant, liability and causation were unchanged, and the panel ordered no remand.

No petition for rehearing was filed by the July 23 deadline. Before this motion, the ordinary seven-day interval placed mandate on July 30. Granite Heron asks the Court to withhold mandate while the parties determine whether the mitigation-sufficiency question will be presented in a petition for a writ of certiorari.

The company recognizes that it prevailed on the two appellate components. It nonetheless asserts an interest in preventing the district judgment from returning for enforcement while Blue Ember decides whether to seek Supreme Court review. Granite Heron states that earlier discussions suggested Blue Ember was evaluating such a petition, although Blue Ember has not joined this motion or filed a declaration of intent.

The requested stay would last no more than ninety days and would end sooner upon notice that no petition will be filed. Granite Heron asks for expedited consideration before the ordinary mandate date.

Rule 41 standard invoked

Rule 41(d)(2)(A) requires a motion to show that a petition for certiorari would present a substantial question and that good cause supports a stay. A stay may not exceed ninety days unless the petition is filed or the filing period is extended. If a petition is filed, the stay continues until the Supreme Court's final disposition, subject to this Court's authority and any required security.

Granite Heron submits that the substantial-question inquiry can consider an anticipated petition by another party because Rule 41 permits any party to move. It identifies the possible question as whether a court may direct a fixed mitigation deduction through Rule 50 when the affirmative defense was expressly preserved but the evidence of technical qualification, timing, and success remained disputed.

The branch opinion resolved that issue against Blue Ember. It held that the Cobalt Finch opportunity and economic evidence compelled the \$1,500,000 net deduction once preservation was assumed. Granite Heron contends that a petition attacking that holding could affect the operative amended judgment and create avoidable enforcement activity if mandate issues first.

The movant does not claim that merely mentioning certiorari satisfies the rule. It relies on the legal importance of the Rule 50 sufficiency standard and on the possibility that Blue Ember may seek review. Granite Heron asks the Court to accept that possibility as adequate despite the absence of a commitment from the party that lost the appeal.

Proposed certiorari question and present uncertainty

The potential petition would not contest the assumed Rule 50(a) language. The isolated branch premise expressly preserved mitigation, identified Cobalt Finch, stated the arithmetic, and supplied an opportunity to cure. Any Supreme Court question would concern the later merits determination: whether unresolved program qualification and execution risk permitted a rational jury to select less than the full defense model.

Granite Heron expects Blue Ember to argue that the panel treated disputed inferences as conclusive when it affirmed JMOL. Granite Heron would answer that the held suite, relevant capability, staged schedule, absence of a known fatal conflict, and bounded financial calculation established a legally sufficient floor. Those competing characterizations are preserved in the branch briefs and opinion.

The difficulty for this motion is present ownership of the proposed petition. Granite Heron has not identified a ruling adverse to it that it intends to challenge. It seeks to preserve the status quo because Blue Ember might petition, yet Blue Ember has not authorized Granite Heron to speak for it. The movant therefore requests a short administrative stay even if the Court finds the present showing insufficient for a full ninety-day stay.

Nothing in this proposed question concerns the actual causation-only motions or the separate actual appellate disposition. All facts and requested relief remain confined to this never-filed branch.

Claimed good cause and financial administration

Granite Heron argues that mandate would return the affirmed \$2,700,000 amended judgment to ordinary district administration while a possible certiorari petition remains under consideration. It anticipates collection activity, security disputes, interest calculations, and possible restitution questions if review were later granted and the judgment changed. A temporary stay, it says, would avoid duplicative proceedings.

The company offers to maintain existing financial reserves and to discuss a bond or other security if the Court requires one. It does not attach an executed bond, a bank undertaking, or evidence that payment would threaten its operations. Its asserted burden is the ordinary consequence of an affirmed monetary judgment rather than loss of a unique asset or an irreversible change in conduct.

Granite Heron also invokes orderly appellate administration. The motion is filed three days before the ordinary mandate date, gives Blue Ember an opportunity to respond, and asks the Court to decide before July 30. No rehearing petition, extension request, or prior stay motion complicates the docket.

The company acknowledges that good cause must be shown rather than presumed from the time available to seek certiorari. It asks the panel to weigh efficiency, the disputed federal sufficiency question, and the ease of preserving the current posture against Blue Ember's interest in prompt finality and enforcement.

Chronology and requested safeguards

The counterfactual panel opinion and judgment were entered July 9. Rule 40's fourteen-day period expired July 23 without a petition. Rule 41's initial additional seven days placed ordinary mandate on July 30. This July 27 filing precedes that date. If the motion is denied on July 29, the later-of provision in Rule 41(b) would ordinarily move issuance to August 5 unless the Court shortens that interval by order.

Granite Heron proposes that any stay expire at the earliest of ninety days, filing and final disposition of a certiorari petition, notice that Blue Ember will not petition, or further order. It would provide a status report within fourteen days and would notify the clerk promptly of any Supreme Court filing. The company accepts that the Court may condition relief on security.

The motion does not request recall because mandate has not issued. It does not reopen the July 9 merits decision, activate the conditional Rule 59 ruling, or ask the panel to alter the two-component affirmance. It concerns only the timing of mandate on this branch docket.

No event described here belongs to the actual appeal. The actual July 9 opinion reversed mitigation JMOL and ordered a damages retrial; this branch instead affirmed JMOL and the amended judgment. Granite Heron relies solely on the never-filed judgment and asks the clerk to preserve that separation in any order.

Conclusion and service

Granite Heron requests a stay of mandate pending the certiorari period or, alternatively, a brief administrative withholding while Blue Ember states whether it will seek review. It submits that the Rule 50 merits question is substantial and that avoiding premature district enforcement supplies good cause. It recognizes that Blue Ember has not joined the request and that Granite Heron identifies no adverse holding for its own petition.

If the Court denies relief, Granite Heron asks the Court to shorten the post-denial interval under Rule 41(b) and direct issuance on July 30 without treating the denial as a new merits ruling. The affirmed \$2,700,000 amended judgment would remain the controlling district disposition, and the conditional new-trial order would remain dormant.

Eli Mercer signs for Granite Heron Logistics, Inc., with Tara Webb's authorization. Counsel certifies electronic service on Maya Holt and Jonas Bell on July 27, 2026. The served document carries the counterfactual docket number and both required warnings.

This motion is one isolated denial-path source. It is not paired with, incorporated into, or evidence for any alternate mandate-stay request. It creates no event on the actual docket and makes no representation that Granite Heron or Blue Ember pursued Supreme Court review in the actual litigation.